

SUBSCRIPTION AGREEMENT

entered in by and between

Homefind24 (Pty) Ltd

registration number: 2008/019235/07

a company incorporated in accordance with the laws of the Republic of South Africa, having its main place of business at Great Westerford, 240 Main Road, Rondebosch, Cape Town, South Africa

(**"Property24"**);

and

Print name of operating entity

Registration (or ID) number of operating entity

Physical address of operating entity

(**"Subscriber"**)

1. Property24 owns and operates the online platform for real estate advertisements with the domain www.property24.com (the "Portal").
2. By signing this agreement, the Subscriber will be entitled, for the duration of this agreement and subject to payment in terms of clauses 6 and 7 below and to compliance with this agreement (including the annexures to this agreement), to the following services:
 - (a) listing on the Portal unlimited properties for sale and to rent (provided the Subscriber possesses a mandate to market each property which is listed);
 - (b) use of the back-office property sales and administration software, known as "PropCtrl"; and
 - (c) use of other services available on the Portal from time to time such as giving electronic instructions relating to conveyancing.
3. The Subscriber will pay the monthly Subscription Fee to Property24 in accordance with the pricing structure specified in **Annexure A** for properties for sale and in **Annexure B** for properties to rent, subject to **Annexure P** (if applicable).
4. All amounts stated in the Annexures are exclusive of VAT, which shall be charged and recovered in addition to such amounts.
5. Subscription Fees are payable monthly in advance for properties listed for sale and to rent.
6. Subscription Fees must be paid by the Subscriber within 7 (seven) calendar days of the date of issue by Property24 of an invoice in respect thereof.
7. Failure to make timeous and proper payment of any amount payable under this agreement shall, without prejudice to Property24's other rights, entitle Property24 to suspend a Subscriber's right to use the Portal without notice, and continued failure to pay will entitle Property24 to terminate this agreement with immediate effect following written notice thereof.
8. Subscription Fees will be adjusted with effect from 1 April every year and the Subscriber will be advised by email or another form of written advice, or by a posting on the Portal.
9. This agreement constitutes a binding agreement between the parties hereto and is entered into for an indefinite period, but can be terminated by either party on one month's prior written notice, subject to **Annexure P** (if applicable).
10. Property24's pricing model requires a subscription for every "front door" OR area agent.
11. As required by the Protection of Personal Information Act 4 of 2013 (POPIA) and other relevant data protection laws, this agreement includes our standard Data Processing Agreement available electronically at <https://www.property24.com/data-processing-agreement> or otherwise directly from us on request. This reference incorporates it into this agreement.
12. **The Subscriber agrees to remain up to date with the latest Terms and Conditions noted in Property24's Listing Policy and Procedure document that can be found on the Portal in Agent Zone, all of which are incorporated in this agreement by reference, with changes required by the context.**

ANNEXURE A: SUBSCRIPTION FEE FOR LISTING PROPERTIES FOR SALE (IF NOT APPLICABLE, LEAVE BLANK)

Property24 will issue an invoice to the Subscriber at the end of each month (“**Invoice Month**”) based on the number of Portal Leads generated in the previous month, as well as a Median Price Bracket that is calculated by the Median Price of the subscriber’s for sale properties that received leads on Property24 in the previous year (“**Median Price Bracket**”). The subscriber’s Median Price Bracket will be reviewed once a year in April. Property24 reserves the right to review this bracket during the full course of any year should Property24 believe the structure of the Subscriber’s listing stock change substantially. The invoice will show the amount which must be paid by the Subscriber (the “**Subscription Fee**”) in advance for the following month.

To illustrate, the Subscription Fee payable in advance for the month of June will be invoiced by Property24 at the end of May based on Portal Leads generated for the month of April and the Median Price Bracket assigned to the subscriber. These two factors defining the price are termed the “**Lead-Price Bracket**”.

The monthly Subscription Fee is based on the Subscriber’s Lead-Price Bracket as set out below:

For Sale Monthly Fee	Median Price ≤ R1.3m	Median Price R1.3m - R2.5m	Median Price R2.5m - R4m	Median Price R4m - R6m	Median Price R6m - R8m	Median Price R8m - R10m	Median Price R10m - R12m	Median Price R12m - R15m	Median Price > R 15m
1 - 10 leads	R 656	R 712	R 776	R 876	R 989	R 1,089	1,120	R 1,164	R 1,199
11 - 30 leads	R 1,956	R 2,093	R 2,259	R 2,496	R 2,868	R 3,103	3,189	R 3,262	R 3,410
31 - 50 leads	R 3,233	R 3,340	R 3,606	R 3,877	R 4,480	R 4,746	4,912	R 5,082	R 5,339
51 - 150 leads	R 5,460	R 5,735	R 6,049	R 6,355	R 7,153	R 7,690	8,176	R 8,369	R 8,884
151 - 250 leads	R 7,132	R 7,523	R 8,012	R 8,560	R 9,320	R 9,537	10,378	R 10,534	R 10,846
251 - 500 leads	R 10,380	R 10,948	R 11,576	R 12,366	R 13,251	R 13,354	13,867	R 13,976	R 15,177
501 - 600 leads	R 13,748	R 14,541	R 15,426	R 16,420	R 17,537	R 17,672	18,354	R 18,781	R 19,492
601 - 750 leads	R 15,037	R 15,903	R 16,871	R 17,960	R 19,624	R 19,772	20,909	R 21,072	R 21,889
751 - 1000 leads	R 16,604	R 17,563	R 18,633	R 19,832	R 21,174	R 21,333	21,492	R 21,988	R 22,979
1001 - 1500 leads	R 21,533	R 22,873	R 24,380	R 26,087	R 28,020	R 28,231	28,441	R 29,098	R 30,410
1501 - 2000 leads	R 26,228	R 27,861	R 29,696	R 31,775	R 34,131	R 34,636	35,443	R 35,968	R 36,493
2001 - 3000 leads	R 36,726	R 39,013	R 41,582	R 44,492	R 47,790	R 48,520	49,629	R 50,008	R 51,145
More than 3000 leads	R 56,772	R 60,307	R 68,562	R 73,360	R 78,800	R 81,134	83,044	R 83,650	R 84,256

For example: The monthly Subscription Fee on properties for sale for an agency that had 100 leads and a Median Price Bracket of R1.3m – R2.5m will be R5,735.

“**Portal Leads**” means any of the following actions by general users of the Portal in relation to their inquiry into property details listed on the Portal:

- User provides contact details to be sent (email/SMS) to agent;
- User requests (click) to see the agent’s telephone number

I confirm that I have specifically read and understand the “Portal Lead” definition that forms the basis of the For Sale subscription pricing model (initial here _____)

The number of Portal Leads for each month is incremented each time a user performs any of the actions mentioned above. A summary of a Subscriber’s Portal Leads (by category) is accessible to the Subscriber, using a unique login and password, via a section of the Portal known as Agent Zone.

ANNEXURE B: SUBSCRIPTION FEE FOR LISTING PROPERTIES TO RENT (IF NOT APPLICABLE, LEAVE BLANK)

Property24 will issue an invoice to the Subscriber at the end of each month (“**Invoice Month**”) based on the **distinct monthly count*** of listings to rent in the previous month. Separate rental subscriptions will be charged for residential and commercial properties. As an exception, agencies that are paying a rental subscription on residential rentals, will not be charged a commercial rental subscription if they have 10 or less distinct commercial rental listings in the month, and vice versa.

For **Residential** rental listings, billing will be conducted based on the median price ranges for comparable listings within the same geographical area, ensuring a fair market rate is applied to the **Subscription Fee**. Property24 reserves the right to adjust the median residential prices periodically to reflect market fluctuations.

For **Commercial** rental listings, the billing will be based on the distinct monthly count of listings, following the structure outlined in the **Subscription Fee** schedule.

The invoice will show the amount which must be paid by the Subscriber (the “**Subscription Fee**”) in advance for the following month.

Residential Rental Subscriptions*	Median Price ≤ R7K	Median Price R7K - R10K	Median Price R10K - R15K	Median Price > R 15K
1 - 10 listings	336	371	400	441
11 - 20 listings	682	767	881	989
21 - 50 listings	1 542	1 770	1 988	2 231
51 - 100 listings	2 915	3 343	3 677	4 128
100+ listings	30	34	39	43

Rental Commercial Subscriptions*	Commercial Monthly Fee
1 - 10 slots	R 444
11 - 20 slots	R 847
21 - 50 slots	R 1 987
51 - 100 slots	R 3 770
More than 100 slots	R39.00 per slot

***distinct monthly count** refers to the count of each individual listing advertised on the portal during the course of the month under measurement.

ANNEXURE C: ADDITIONAL PRODUCTS (if applicable)

ANNEXURE D: NEW SUBSCRIBER

ANNEXURE E: PROPCTRL SET-UP DOCUMENT (if applicable)

ANNEXURE F: ELECTRONIC FUNDS TRANSFER (if applicable)

ANNEXURE G: DEBIT ORDER AUTHORISATION (if applicable)

ANNEXURE H: PROPCTRL FEED TO PRIVATE PROPERTY (if applicable)

ANNEXURE I: BANNER ADVERTISING (if applicable)

ANNEXURE K: PROPERTY24 PROPERTY DATA SUBSCRIPTION (if applicable)

ANNEXURE P: PACKAGE (if applicable)

ANNEXURE N: PACKAGE UPGRADE (if applicable)

Kindly complete and sign the signature section below (irrespective if you are contracting on behalf of a single office or multiple offices).

Signature	
Name of Signatory	
ID Number of Signatory	
Date	

Effective Date _____